# Persecution of Transgender, Gender-expansive, and Intersex (TGI) People in the United States in 2026

*The TGI to Prison Torture Pipeline*

LGBT Asylum Support

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# *Persecution of Transgender, Gender-expansive, and Intersex (TGI) People in the United States in 2026:* ***The TGI to Prison Torture Pipeline***

## Compounding state and federal persecution warrants international action to ensure equitable access to asylum for TGI people in the United States.

The discriminatory policies of the Trump administration and many U.S. state governments have rapidly eroded the rights and legal protections of transgender, gender-expansive, and intersex (TGI) people to the point that it constitutes persecution. In 2025, at least 616 anti-LGBTQ+ bills were introduced in the U.S., including 51 anti-trans bills that were signed into law.[1] That year, the federal government stopped enforcing protections for TGI people related to housing, employment, and sexual violence against prisoners.[2] **So far in 2026, at least 474 anti-LGBTQ bills have been introduced, including 101 federal anti-trans bills.**[3]

These laws have increasingly made daily life dangerous and at times impossible for trans people throughout the U.S. TGI people are experiencing persecution in the United States due to discriminatory state and federal laws that lead to the criminalization of TGI people, judicial systems that fail to offer adequate, timely protection, and federal policies that allow and even intentionally inflict torture on TGI prisoners and detainees.

***616***
***Anti-LGBTQ+ Bills Introduced in 2025***

***51***
***Anti-Trans Bills Signed Into Law in 2025***

***474***
***Anti-LGBTQ+ Bills Introduced in 2026 to Date***

## State-Level Criminalization

State laws have already been implemented that make navigating public life increasingly dangerous and costly for TGI people. These laws have removed recognition and some of the constitutionally-protected rights of transgender people, created bounty-style laws regarding the use of gender-aligned bathrooms, and imposed barriers to accessing gender-aligned identity documents.[4]

These changes come with financial costs for those impacted, make it more difficult or impossible to accomplish tasks that require valid documentation, such as accessing public benefits or signing a lease, and could even result in criminal charges.

### Case Study: Kansas

The state of Kansas recently enacted and published a law requiring that Kansas-issued driver's licenses and identification cards must reflect the credential holder's "sex at birth." **This will force about 1,700 Kansans to change their birth certificates and state IDs back to the genders assigned to them at birth.**[5] It also establishes a bathroom bounty hunter system that allows citizens to sue transgender people they encounter in restrooms for at least $1,000 in damages.[6]

Because the law was enacted immediately, with no grace period for updating credentials, many TGI people in Kansas now find themselves without a valid license. **Impacted TGI people lost the ability to drive legally, making it difficult to go to work, buy groceries, access healthcare, and engage in daily life in a state with little public transportation**.[7]

Should any TGI person be caught driving without a valid license, they could face a class B misdemeanor, which carries **up to a $1,000 fine and six months in jail** in a state that houses inmates according to their sex assigned at birth.[8] After completing the process of updating a license, it can take 14–45 days for the document to arrive.[9] For those who could afford to move, it's suddenly even more difficult to seek safety in a new state.

Although the American Civil Liberties Union is suing to stop this law, citing violation of the U.S. Federal Constitution and Kansas State Constitution protections for rights to privacy, due legal process, and personal autonomy, legal processes are often slow, and other harmful anti-TGI laws have already been allowed by the U.S. judicial system.[10]

## Federal Persecution

Rather than helping the TGI people impacted by discriminatory state laws, the federal government has rolled back civil rights protections for them, implemented gender-affirming care bans for people under 19, and attached "transgender ideology" to a domestic terrorist designation.[11] **Federal policies that once protected TGI people from sexual violence in prisons, jails, and immigration detention centers have now been removed.**[12]

The Federal Bureau of Prisons' policy states that inmates must be held in prisons based on their sex assigned at birth, and that TGI inmates with gender dysphoria undergo conversion "therapy," including medical and social detransitioning.[13] Given that federal prisons are now also being used to house detainees, and that **torture and discriminatory violence against LGBTQ+ people have already been reported**, TGI people detained by Immigrations and Customs Enforcement (ICE) are likely being treated similarly.[14]

Victor Madrigal-Borloz, the United Nations' expert on sexual orientation and gender identity, has stated that "conversion therapy" practices are "inherently discriminatory… cruel, inhuman and degrading treatment, and that depending on the severity or physical or mental pain and suffering inflicted to the victim, they may amount to torture."[15] This policy also seemingly involves experimentation that violates the Nuremberg Code.[16] Subjecting TGI prisoners, a protected group, to these policies constitutes gender-specific persecution in the form of punishment that is disproportionate and discriminatory.[17]

> Conversion "therapy" practices are "inherently discriminatory… cruel, inhuman and degrading treatment,… depending on the severity or physical or mental pain and suffering inflicted to the victim, they may amount to torture."
>
> **Victor Madrigal-Borloz** - UN Independent Expert on Sexual Orientation and Gender Identity

When such treatment is mandatory under federal law, **it places all TGI people who experience gender dysphoria or have transitioned at risk of persecution**, regardless of state law. The criminalization of TGI people is growing, whether it be due to laws that directly criminalize LGBTQ+ peoples' existence, or policies that impoverish them by removing access to public benefits and criminalize behaviors associated with poverty.[18]

**Positioning from the Trump administration, the Department of Justice, the FBI, and the Supreme Court suggest that LGBTQ+ people are going to face further state-sanctioned persecution and discrimination in the coming months.**[19] Even outside of laws that focus on LGBTQ+ people, the U.S. government is targeting individuals engaged in legal observation of ICE agents and other forms of dissent, and discriminately detaining people based on race, language, and work.[20] Together, these policies create a high-risk of persecution and serious harm for TGI people in the United States.

In February of 2026, the European Parliament passed a resolution calling for the full recognition of transgender women as women.[21] This is in stark contrast to the Trump Administration's stance, which is that there are only two binary genders and they must align with sex assigned at birth. This difference should also be heavily considered in regards to the safety of TGI people in the United States.[22]

## Policymakers Must Act Quickly to Aid Persecuted Communities

Despite evidence of persecution, many countries officially recognize the U.S. as a "safe country of origin" and "safe third country," while others use case-by-case policies that may presume safety in the U.S.[23]

### Safe Country of Origin Definition

A non-EU country that a Member State, and the EU as a whole, has officially designated as one where, based on its laws, how those laws are applied in practice, and its general political situation within a democratic system, there is no persecution and no real risk of serious harm, as set out in Article 61(1) of Regulation (EU) 2024/1348.[24]

When an applicant for international protection comes from a safe country of origin, their application examination will be accelerated and completed within three months or less. Moreover, if the applicant has not yet been authorized to enter Member State territory, a Member State may examine the merits of the application at the border before granting admission.

Member States may apply the safe third country (STC) concept only where the competent authorities are satisfied that a person seeking international protection will be treated in accordance with the following principles in the third country concerned[25]:

- life and liberty are not threatened on account of race, religion, nationality, membership of a particular social group or political opinion;
- there is no risk of serious harm as defined in Regulation (EU) 2024/1347[2];
- the principle of non-refoulement — including against onward removal — in accordance with the Geneva Convention is respected;
- the prohibition of removal in violation of the right to freedom from torture and cruel, inhuman or degrading treatment as laid down in international law is respected;
- and the possibility exists to request protection and, if eligible, to receive effective protection, providing the right to remain pending examination, an adequate standard of living, and access to healthcare and education on equal terms with nationals.[26]

According to the Safe Third Country concept, certain applicants may be considered to have, or have had, the opportunity to obtain protection in a country through which they transited or with which they have a connection, allowing Member States to declare their application inadmissible rather than examining the facts of each case.

Since Trump's inauguration, we are unaware of any country that has officially granted asylum to people fleeing the U.S. These realities cause people who are experiencing or are at risk of persecution in the U.S. to believe that receiving international protection is not an option. People in the U.S. who need international protection will therefore avoid seeking it, believing that it will result in being placed at greater risk of serious harm if sent back to the U.S.

**Without a viable and publicly recognized path to safety, the reality of this situation subjects a growing number of people to persecution, trauma, coerced labor, inhumane conditions, death, and more. Policymakers must act urgently to address the growing humanitarian crisis unfolding in the U.S.**

## How Immigration Policymakers Can Help

**1.** Requesting that the European Commission and European Union Agency for Asylum, in partnership with your national asylum agency, evaluate whether the U.S. currently meets the criteria to be considered a “safe country of origin” or “safe third country” under EU law, especially in light of expert warning that the U.S. is now clearly displaying signs of genocide against TGI people.[27]

**2.** Working with your national asylum agency to stop the assumption that applicants for international protection from the U.S. originate from a “safe country of origin” or “safe third country” while there is credible evidence of persecution and human rights violations.

**3.** Publicly acknowledging the evidence of persecution and human rights violations happening in the U.S., and that people experiencing persecution in the U.S. are eligible for international protection.

**4.** Asking the United Nations Human Rights Council, the International Criminal Court, and other relevant international bodies to conduct investigations into crimes against humanity in the U.S. and pursue all available avenues of holding the perpetrators accountable.

### *About Help Me Leave*

*Help Me Leave is a volunteer-run, non-profit helping marginalized people find safe pathways out of the U.S. We provide practical visa and relocation information, connect people with legal and community support, and advocate for fairer global migration systems.*

***For press inquiries or expert comment, visit www.helpmeleave.us/media.***

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